

2.3 CoCos and preferred shares: law beyond the prospectus

Suppose Ms Lee now asks to buy a bank capital instrument. Her wealth and her consent to the streamlined approach do not answer the first product question: what, exactly, could happen to her investment if the issuing bank becomes distressed? The answer may depend on the offering conditions, banking legislation, a regulator's order and subsequent litigation. A second question concerns the intermediary: which products may it sell to this client, through this service, and subject to which obligations? Keeping these questions separate is necessary even when both eventually depend on the same loss-absorption provision.

The preserved prospectuses make this a concrete investigation. The UBS Singapore dollar notes issued in 2024 contain conversion provisions; the US preferred-share documents describe different legal interests and distribution rights. A country label or the word "preferred" cannot substitute for identifying the issuer, instrument, applicable conditions and distribution arrangement. The Swiss and Hong Kong sources examined below form a bounded survey, inspected on 29 September 2026. A dated source establishes what that source says; it does not establish that no later amendment, order or judgment exists.

2.3.1 What can disappear when a bank absorbs losses?

A contingent convertible instrument, commonly called a *CoCo*, changes the holder's rights when specified conditions occur. Bank capital instruments may instead provide for a reduction of the debt claim. *Additional Tier 1* (AT1) is a category of regulatory capital available to absorb losses. It is not a promise of safety to its purchaser. *Common Equity Tier 1* (CET1) is the core equity category; a contractual trigger may refer to its ratio to risk-weighted assets. The relevant ratio, entity, threshold, observation date and notification provisions must all be identified. A *point of non-viability* provision concerns intervention to prevent failure and need not coincide with breach of that numerical threshold (Swiss Federal Council, 2025, arts. 27, 27a and 29).

A permanent write-down can extinguish principal without delivering replacement shares. Conversion also removes the original debt claim, but replaces it with equity under specified settlement arrangements. The market value of that equity may be very low or eventually zero; this does not make conversion the same legal mechanism as cancellation without compensation. Temporary reduction and a conditional future write-up form a third possibility. Separately, cancellation of a non-cumulative distribution removes that period's payment entitlement without, by itself, cancelling principal. The implementation must therefore record debt principal, replacement shares, distribution entitlements and any restoration right separately. Its existing exact-arithmetic examples do this conditionally; they do not establish that every real instrument fits those examples.

The retained UBS conditions illustrate why the qualification matters. Conditions 7 and

8 provide for conversion following the specified trigger or viability event. Condition 7(b) also contains notification, timing and higher-trigger priority provisions, including a defined circumstance in which FINMA can agree that conversion need not occur. Condition 7(e) addresses subsequent legal changes that can displace the contractual viability clause after the required determination and notice. Thus, even this conversion example needs more than a comparison of one capital ratio with one number. The retained document contains published terms and conditions; it is not represented here as a complete final prospectus with every incorporated document and later notice (UBS Group AG, 2024, conditions 7–8, PDF pp. 25–29).

Bail-in introduces another route: an authority restructures liabilities under statutory powers. Whether that route reaches a particular claim depends on the applicable law and proceedings. A warning about possible bail-in is therefore evidence of a risk requiring investigation. It is neither evidence that an order has been made nor a sufficient classification rule for every investor-protection regime. Hong Kong’s banking regulator expressly distinguishes debt that could be bailed in from the narrower product class covered by its loss-absorption guidance (Hong Kong Monetary Authority, 2022c, questions 1–4).

2.3.2 Swiss capital requirements and powers of intervention

The Swiss Financial Market Supervisory Authority, *FINMA*, supervises the relevant banks. Three different sources of loss absorption must be examined: the capital instrument’s agreed conditions, ordinary banking resolution law and any exceptional measure applicable to the event. They do not supply interchangeable legal grounds.

The retained German consolidation of the Capital Adequacy Ordinance, effective 1 January 2025, is the principal legislative text used for the following description; its official-site English translation is retained as a reading aid. Article 27 distinguishes capital eligibility from the trigger written into a debt instrument. Article 29 requires provision for loss absorption at non-viability, through complete reduction of claims or conversion, and specifies FINMA’s role. An instrument may consequently qualify as capital for the bank because it exposes its holder to loss. This prudential eligibility is a different question from whether an intermediary may distribute it to Ms Lee (Swiss Federal Council, 2025, arts. 27–29).

Article 27a, introduced with effect from 1 January 2025, is especially relevant to executable interpretation. Once the specified trigger for eligible AT1 liabilities occurs, FINMA orders the reduction or conversion, its timing and the amount affected. The provision also requires preservation of the contractual issue or loan conditions and their resulting priority. A program that extracts only “FINMA orders the reduction” loses those conditions. Conversely, a program evaluating a March 2023 event cannot silently use this later provision. The retained 2025 consolidation also amends article 29(2); the earlier wording quoted in the Credit Suisse judgment must remain available for the historical question (Swiss Federal Council, 2025, arts. 27a and 29, amendment footnotes).

Ordinary resolution follows a separate statutory route. Article 25 of the Banking Act states the conditions for intervention, including serious liquidity problems, suspected over-indebtedness and failure to meet capital requirements after the specified deadline. Articles 26 and 28 distinguish protective measures from restructuring proceedings. The amendment published as AS 2022 732, effective 1 January 2023, sets out capital measures in article 30b: its provisions address conversion and reduction of claims, protected claims, prior absorption of capital, creditor ordering and specified exceptions. Article 30c governs the restructuring plan, including creditor protections, and article 31 governs approval, including its specified compensation provision for systemically important banks (Swiss Confederation, 2022, arts. 30b–31 and commencement provision). These provisions are also visible in the retained 2024 consolidation. A general instruction power is not interchangeable with this structured resolution route (Swiss Confederation, 2024, arts. 25–31).

Subordinate procedural rules also change. FINMA's Insolvency Ordinance of 20 August 2025 entered into force on 1 October 2025 and repealed the 2012 Banking Insolvency Ordinance. Its transitional provision applies the new ordinance to proceedings already pending at commencement. The investigation must therefore inspect transitional rules rather than assume that the law applicable throughout a proceeding is fixed by its opening date (FINMA, 2025b, arts. 1–2 and 48–50).

There was also an exceptional measure in March 2023. The amendment published as AS 2023 136 inserted article 5a into the emergency liquidity ordinance. It addressed FINMA's ability to order the borrower and its financial group to write down additional Tier 1 capital at the specified credit-approval point. Its text did not declare all CoCos issued by every Swiss bank worthless. The amendment entered into force on 19 March 2023 at 20:00 (Swiss Federal Council, 2023a, art. 5a and commencement provision). Another amendment, adopted on 6 September and published as AS 2023 495, repealed articles 5–7 with effect from 15 September 2023. Confusing adoption with commencement would give the program the wrong boundary. Repeal of a power for new action also does not, by itself, decide the consequences of an earlier order (Swiss Federal Council, 2023b, repeals and commencement provision).

These provisions establish why a legal investigation is necessary. They do not justify a universal rule that “Swiss bank” and “AT1” imply an immediate write-down to zero. The program needs the legal entity and claim covered by a power, its effective version, its factual conditions, the required procedure and any operative order. It must also distinguish the existence of an asserted legal basis from a final judicial determination of its validity.

2.3.3 Credit Suisse: the write-down and its judicial review

The Credit Suisse case demonstrates the cost of collapsing those distinctions. FINMA's statement of 23 March 2023 described its instruction to write down Credit Suisse's AT1 instruments. It relied on the contractual viability event and the emergency ordinance, and said the Tier 2 instruments were unaffected. That is a preserved account of the regulator's position and action. It is not a judgment resolving all objections to their

legal basis (FINMA, 2023).

In its partial judgment of 1 October 2025, B-2334/2023, the Swiss Federal Administrative Court annulled the challenged order. Its reasoning examined the contractual provisions and the alleged public-law grounds separately. In particular, the court distinguished assistance addressing liquidity from the capital-adequacy conditions in the contracts before it. It did not treat the existence of extraordinary public support as sufficient to erase the rest of the contractual wording. Its reasoning also distinguished a guarantee benefiting the acquiring entity from assistance to the entity specified in the contract (Swiss Federal Administrative Court, 2025a, reasons 5.3–5.5, especially 5.4.4–5.4.8).

On the public-law grounds, the court found that the protective-measure provision in article 26 of the Banking Act and the general remedial provision in article 31 of the Financial Market Supervision Act did not provide the required basis for the disputed extinguishment of claims. It also rejected reliance on the emergency provision, addressing legal certainty, the constitutional conditions for emergency action, delegation and property protection. These are the findings of that court in this partial judgment. They should be preserved with their procedural status, rather than rewritten as either an uncontested description of FINMA's powers or a general abolition of bank resolution (Swiss Federal Administrative Court, 2025a, reasons 6.8–6.10, 7.6–7.11, 8 and 10).

The subsequent chronology is equally material. FINMA announced an appeal on 15 October 2025. The Administrative Court's announcement of 22 October said that other pending AT1 cases were suspended and that reversal of the write-down had not yet been decided (FINMA, 2025a; Swiss Federal Administrative Court, 2025b). A later Federal Supreme Court judgment, 2C_565/2025 of 5 March 2026, records the separate merits appeals 2C_661/2025 and 2C_662/2025 and the grant of suspensive effect on 8 December 2025. But 2C_565/2025 itself concerns a procedural complaint about access to submissions and delay; its inadmissibility decision does *not* dispose of those merits appeals (Swiss Federal Supreme Court, 2026, facts D, reasons 1.1–1.4 and operative order).

The dossier therefore supports a more precise historical account than either “the regulator may always erase the bonds” or “the investors have been repaid”. It records the write-down, the partial annulment, the separate appeals and the reported stay. The latest judicial text inspected for that procedural history is dated 5 March 2026. A fresh operational determination requires a check of the merits dockets and any later relief; a search that finds no later decision is not proof that none exists. Payment actually received is a further fact, distinct from annulment, an entitlement to relief or a stay.

For testing, this case supplies source documents and changing propositions, not a human-labelled answer with which the program must agree. A court's judgment is part of the law and procedural history being represented. Whether the software has represented its content, scope and consequences correctly remains a separate obligation. The project does not use human ratings, annotator consensus or agreement with a model's preferred legal interpretation as a quality criterion.

2.3.4 Which Hong Kong requirement follows from the risk?

The SFC's circular of 7 December 2018 expressly discusses bonds whose non-viability loss absorption can follow a capital-ratio event or government or regulatory action. It connects their complexity to product due diligence, suitability, disclosure and the client's ability to understand and bear the risks. This supports investigating statutory and regulatory events alongside contractual triggers. It does not make "can lose everything" a universal SFC prohibition on sale ([Securities and Futures Commission, 2018](#), discussion of NVLA bonds and selling practices).

For a bank acting as a *registered institution*, another source is decisive: the HKMA's circular of 21 October 2022 and its two annexes. The circular consolidates and supersedes the earlier 2018 and 2019 guidance ([Hong Kong Monetary Authority, 2022a](#)). Annex 1(A) restricts sale and distribution of in-scope loss-absorption products to professional investors in both primary and secondary markets. Thus the channel and intermediary type matter: an SFC circular addressed broadly to intermediaries and an HKMA requirement for registered institutions must not be treated as identical statements with identical scope ([Hong Kong Monetary Authority, 2022b](#), applicability and section A).

The scope must be established before applying that restriction. Annex 1 covers the specified contingent write-down or conversion features, and certain products investing mainly in, or closely linked to, such instruments ([Hong Kong Monetary Authority, 2022b](#), applicability). Annex 2, question 1, includes qualifying AT1, Tier 2 and specified loss-absorbing-capacity debt under the relevant Hong Kong or equivalent foreign regimes. It expressly excludes instruments legally constituted as equity, including preferred shares, and deposits. Questions 2–4 explain why possible bail-in alone is insufficient. Consequently, an ordinary debt warning does not automatically place the instrument in scope, and exclusion of an equity-form preferred share from this particular circular does not establish that the share is non-complex, suitable, or freely distributable. A depositary share also requires examination of its own legal interest and underlying security; its marketing name is insufficient ([Hong Kong Monetary Authority, 2022c](#), questions 1–4).

Exceptions have their own boundaries. Annex 1(E) removes the specified enhanced suitability and disclosure measures in sections C and D for loss-absorption funds while preserving the applicable SFC requirements; it does not remove section A's professional-investor restriction. Section F grants specified institutional and qualifying corporate professional investors relief from sections B, C and D. These are limited forms of relief, not a general permission for retail distribution ([Hong Kong Monetary Authority, 2022b](#), sections E–F).

The execution arrangement can also change which intermediary must apply the circular. Annex 2, question 9, describes a specific arrangement involving an appropriately regulated adviser or asset manager, an execution broker with the restricted service and contact role, a written allocation of responsibility and written notification to the customer. The clarification requires all of those conditions and does not cover a customer asking that broker directly to purchase the product. Question 10 separately addresses discretionary portfolio management on a holistic basis. The procedure must therefore

preserve service roles and conditions rather than attach an unconditional “execution-only” exemption to the account (Hong Kong Monetary Authority, 2022c, questions 9–10).

SPI streamlining is a further decision. The SFC’s SPI FAQ identifies loss-absorption debt and related products as requiring a specific product category, with regard to their characteristics and existing product-specific requirements. Meeting the SPI wealth threshold alone establishes neither category knowledge nor satisfaction of a separate selling restriction. The implementation should report product classification, applicable audience restrictions, remaining selling obligations and availability of streamlining as separate conclusions. A client’s own mandate may add a restriction, but that restriction must come from the mandate rather than a presumed preference attached to the client’s wealth (Securities and Futures Commission, 2026a, questions 3–4).

2.3.5 A source procedure that can detect the missing law

An instrument investigation begins with identity: the issuing legal entity, any relevant guarantor or resolution entity, identifier, issue and amendment dates, legal form, governing law and intended distribution arrangement. The document set should include final conditions, the correctly associated base prospectus, incorporated material, supplements and relevant notices. A later base prospectus must not be attached to an earlier issue merely because it is from the same bank. A missing final document leaves a recorded gap.

The next step follows the prospectus’s legal references and independently examines the issuer-jurisdiction legislation and supervisory sources. The investigation records the provision, its effective interval, the entities and claims it covers, its conditions and the legal consequence. Ordinary resolution, contractual non-viability and emergency action remain separate entries. It then checks relevant orders, proceedings, stays and subsequent judgments. For the Swiss example, this means identifying the relevant ordinance edition and checking the Credit Suisse litigation without transferring its contractual findings to a different UBS issue.

A consolidation date is also insufficient evidence that every amendment has been incorporated. The archived Banking Act copy labelled 1 January 2023 lacks the article 30b and 30c headings present in the promulgated amendment effective on that date and in the retained 2024 consolidation. The discrepancy is retained as a source-version finding; the account above uses the amendment and the corroborating consolidation. A mechanical article-presence check detects this omission, although presence alone cannot establish faithful incorporation of the provision’s meaning.

Distribution law is investigated separately for the place, intermediary, service and customer. For the present case, that search includes the SFC complex-product and SPI material and the HKMA circular with both annexes, including their exceptions and supersession history. Product-specific offering restrictions and client mandates remain additional dependencies. This is a bounded source procedure: cross-border recognition, other jurisdictions, incorporated definitions or a newly discovered restriction can

enlarge the required set. The program must then reopen the affected conclusion rather than assert that the original list was exhaustive.

Two dates are retained for every changing proposition: when it applies and when it became available in the decision's evidence history. Downloading a 2025 judgment today must not rewrite what the system knew in March 2023. Conversely, a present assessment of the 2023 event may need that judgment. Original bytes, retrieval locations and hashes preserve the evidence used; page text is a derivative. A changed source invalidates dependent results until the change is assessed. Unchanged bytes prove neither current law nor complete retrieval, so an unresolved update check remains visible.

At the end of this procedure, every required proposition is established under stated premises, refuted, unresolved, or conflicting. For example, the fact that FINMA has an applicable power cannot supply the missing fact that it has issued the relevant order. An unresolved contractual interpretation must not be converted into certainty by a compiler, by several agreeing models, or by a human verifier. The software can instead state exactly which conditional conclusion follows and which missing premise prevents an unconditional one.

2.3.6 Tests that discriminate between the possible mistakes

The implemented checks exercise these distinctions with formally stated premises. They do not use a collection of people's preferred eligibility answers. For a necessary-condition rule, the independent specification is the set of complete fact assignments satisfying every condition. Incomplete evidence describes several possible assignments. If all satisfy the rule, the conditional result is true; if none do, it is false; otherwise it is unresolved. Conflicting evidence is reported separately, so an empty set of consistent assignments cannot produce a vacuous permission.

This gives a precise test of the professional-investor restriction. Under the bounded four-premise specification, violation occurs when the seller is a registered institution, the product is in scope, the investor is not a professional investor and the specific exception is known not to apply. Enumerating partial assignments tests whether the executable predicate agrees with that independently stated relation. An unknown exception is neither assumed available nor silently treated as a known negative fact. Satisfaction of this single restriction still does not establish permission to sell under all applicable requirements.

The regression cases are designed around errors that would otherwise survive a successful compilation:

Change in the evidence or case	Required distinction
Same Swiss issuer country, different instrument conditions	Country alone cannot establish a write-down mechanism or the power's instrument scope.

Change in the evidence or case	Required distinction
Capital-ratio condition absent, viability route unresolved	Absence of the numerical trigger cannot establish absence of every loss route.
Generic statutory bail-in warning added	The warning cannot establish the HKMA's narrower direct-debt classification by itself.
Preferred share legally constituted as equity	Exclusion from the particular debt classification does not become permission to sell.
One required authority premise removed	The asserted power becomes unresolved unless another known false premise already defeats it.
Emergency provision tested at its start or repeal boundary	Apply the exact recorded effective interval; adoption and commencement are distinct.
Judgment added after the original decision	Preserve historical knowledge; permit a separate reassessment using later information.
Procedural appeal declared inadmissible	Do not mark the separate merits appeals decided.
Annulment recorded, repayment evidence absent	Preserve the annulment and its finality or stay status without inventing a payment.
SPI eligibility changed to true	A failed independent selling requirement continues to prevent a positive sale conclusion.
Applicable law bytes changed or disappeared	Dependent evidence is stale; the previous conclusion remains historical.

The current executable addition checks the authority premises, the bounded direct-debt classification, the professional-investor restriction, independent sale conditions, time intervals, proceeding types and source changes. It does not yet execute the full UBS notice and conversion schedule, all fund and depositary-share classifications, cross-border resolution recognition, or an automatic reading of court reasons. Those remain explicit implementation obligations. The source dossier also records the currentness check still needed before a live decision; no finite regression suite establishes the absence of an unknown future legal change.

2.3.7 What this adds to independent assurance

The earlier prospectus campaign preserved documents and checked conditional mechanics, source quotations and shared-language execution. That work is useful, but a correctly executed ratio test cannot compensate for a missing statutory power, a wrong legal entity or an omitted selling restriction. This survey identifies those dependencies before the translation into executable rules. The added tests establish properties of

their explicit representation, while the preserved sources expose the remaining interpretation questions.

Generalisation requires the same discipline when the next unfamiliar instrument arrives. The program should preserve the new sources before adapting its interpretation, attempt the fixed checks, and report which premises it cannot establish. If a legal change requires repair, the old result remains associated with its original sources and method, and the repaired method is tested on a subsequent untouched case. The defensible promise is conditional correctness with detectable limits and reproducible revision. Universal legal correctness on unknown future texts has not been proved.

2.4 Marketing rules require exceptions and judgment

The October 2023 distributor circular examines additional returns and incentives, redemption restrictions and marketing of fund-related services. Its treatment of guaranteed-return arrangements depends on the arrangement and the relevant legal classification. A potential structured-product classification should produce a supported assessment task; a language model should not resolve it from a slogan alone (SFC, 2023b, paras. 5–11).

The circular's discussion of gifts expressly distinguishes discounts of fees or charges. Losing that exception makes an apparently conservative implementation incorrectly broad. Its redemption discussion distinguishes administrative procedures or cut-off times from reducing a fund's dealing frequency. A daily dealing fund offered with weekly redemption presents a different issue from a different daily processing cut-off. These are excellent paired test cases because they differ in the fact that determines the treatment (SFC, 2023b, paras. 9–14).

The advertising discussion addresses misleading impressions and comparisons with deposits. Keyword detection can nominate material for review, but it cannot establish the whole classification: meaning depends on the presentation and the service described. The system should retain the advertisement, the relevant source passages and the reviewer's conclusion. That is a useful result even when there is no defensible fully automated predicate (SFC, 2023b, paras. 15–17).

2.5 The source packet and the question it supports

The running example begins with an identifiable public document: SFC circular 23EC46, issued on 24 October 2023, concerning additional returns and other services or arrangements offered when marketing SFC-authorized funds (SFC, 2023b). The retained experiment selected its paragraph-10 gift restriction. The circular as a whole discusses more than that restriction. A reader needs to know both what was selected and what remains outside the control before a result from the control can be interpreted.

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